

Argument for the attorney.

to perform to their clients and to the public. As a class, they are supposed to be, and, in fact, have always been, the vindicators of individual rights, and the fearless assertors of the principles of civil liberty; existing, where alone they can exist, in a government, not of parties or men, but of laws."

And this view of the dignity of the attorney's office is supported by all authorities.*

II. The constitution of Massachusetts ordains as follows:

"No subject shall be held to answer for any crimes or offence, until the same is fully and plainly, substantially and *formally*, described to him. And every subject shall have a right to meet the witnesses against him, face to face, and to be fully heard in his defence."

"And no subject shall be deprived of his property, immunities, or privileges, but by the judgment of his peers, or the law of the land."

At the common law, the words *crime* and *offence* are used as synonymous and universal terms, and as comprehending every act for which a forfeiture of any legal right might be worked, or penalty imposed, or punishment inflicted, in any form of judicial proceeding.†

* 7 Bouvier's Bacon Abr., title "Office," 308; Gillman v. Wright, 1 Sid-
erfin, 410; White's Case, 6 Modern, 18; King v. Sheriff of York, 2 Shower,
154; In re the Justices of Antigua, 1 Knapp's Privy Council, 267; In re
King, 8 Q. B. 129; Ex parte Hennen, 13 Peters, 259; Ex parte Swett, 20
Pickering, 1; Ex parte Secombe, 19 Howard, 9; Ex parte Burr, 9 Wheaton,
529; Ex parte Sayre, 7 Cowen, 368; Ex parte Leigh, 1 Mumford, 481; Ex
parte Fisher, 6 Leigh, 619; "Judges' Opinions," 20 Johnson, 492; Anony-
mous, 4 Johnson, 191; Mill's Case, 1 Michigan, 392; Bradley's Case, 19
Law Reporter, 430; In re Dorsey, 7 Porter, 381; People v. Turner, 1 Cali-
fornia, 151; Fletcher v. Daingerfield, 20 Id. 430; Commonwealth v. Judges,
1 Sergeant & Rawle, 187; Chapman's Case, 11 Ohio, 430; State of Iowa v.
Start, 7 Iowa, 499; In re Cooper, 22 N. Y. 81; Bruce v. Fox, 1 Dana, 450;
Vise v. Hamilton, 19 Illinois, 78; Ex parte Heyfron, 7 Howard's Mississippi
127; The People v. Lamborn, 1 Scammon, 123.

† Bouvier's Law Dictionary, title "Crime;" 4 Blackstone's Comm. 5, 6,
and note 3, Wendell's Edition; Commonwealth v. Dennison, 24 Howard, 99;
1 Chitty's Prac. 14; The King v. Shaw, 12 Modern, 113; Bonaker v. Evans,
16 Q. B. 171; James Prescott's Trial, 124.